

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 7/29/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
1	30-2026-01582060 Cakmak vs. Boor	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 10) and the Complaint (ROA 2). The Court OVERRULES the Demurrer. The Defendant is ordered to file an Answer within 5 business days. The Defendant is to serve notice of the Court's ruling.
2	30-2026-01578483 Liao vs. Romero	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 21), Plaintiff's Opposition (ROA 25) and the Complaint (ROA 2). When a party files a demurrer, the Court looks at the facial sufficiency of the complaint and attachments only and cannot consider extrinsic evidence. The Court must assume that the statements contained within the Complaint are true in determining facial sufficiency. As such, the Court OVERRULES the Defendants' demurrer.

		The Defendants are ordered to file an answer within 5 calendar days. The Court sets a trial date of July 12, 2026, at 8:30 AM in C61. Witnesses are required to testify in person unless the Court finds good cause to allow remote testimony. The party seeking remote testimony of a witness must file the request and service notice to all parties and the Court at least 5 days prior to the trial date. Parties should have at least three (3) copies of any documentary evidence they intend to present in the trial-one for themselves, one for the opposing party, and one for the Court. If the parties upload any evidence to the evidence portal, or intend to present any video evidence, they must have a device available to present such evidence in the courtroom on the day of trial. Plaintiff's Counsel is ordered to provide notice of ruling.
3	30-2026-01583415 Broadstone Alton, LLC vs. Aljohani	The Court has read and considered the Defendant's Demurrer (ROA 12) and the Complaint (ROA 2). The Court OVERRULES the Demurrer. The Defendant is ordered to file an answer within 5 calendar days. The Plaintiff is ordered to serve notice of the Court's ruling.
4	30-2026-01577411 Hoang Do vs. Zhang	The Court has read and considered the Defendant Adeleil Zhang's Motion to Quash Service of Summons (ROA 47). The Court takes Judicial Notice of the Order to Serve Summons by Posting (ROA 11) and Proof of Service of Posting (ROA 18). The Plaintiff in this matter submitted an Application to Serve Summons by Posting which was granted by this Court on 6/29/2026 (ROA 11). Registered Process Server David Cunningham (OC # 1895) signed a declaration of attempted service at the premises address on three different dates at three different times of the day prior to the Court approving service by posting. In ROA 18, Mr. Cunningham states that on 7/11/2026 at 10:30 AM, he posted the summons, complaint, prejudgment claim, and other documents to the premises and then sent the same packet by certified mail to the Defendant Adeleil Zhang. California Evidence Code Section 647 creates a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. Defendants have provided no evidence to rebut the presumption under Evidence Code Section 647, other than their self-serving statements that they found the summons and complaint in their mailbox on June 24, 2026, and that they have received no other service. The Motion to Quash Service of Summons is DENIED. Adeleil Zhang is ordered to file a responsive pleading within 5 calendar days.

		The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 38) and the Complaint (ROA 2). The Court OVERRULES the Defendant's Demurrer to the Complaint. Thanh Nguyen and Hien Nguyen are ordered to file an Answer within 5 calendar days. The Plaintiff is ordered to give notice of the Court's ruling.
5	30-2026-01575255 Wheatley vs. Marchand	The Court has read and considered the Defendant's Motion to Quash Service of Summons (ROA 15) and Plaintiff's Opposition (ROA 18). The Court takes Judicial Notice of the Order to Serve Summons by Posting (ROA 10) and Proof of Service by Posting (ROA 20). The Plaintiff in this matter submitted an Application to Serve Summons by Posting which was granted by this Court on 6/23/2026 (ROA 10). Registered Process Server James Voelkl Jr. (OC # 350489) signed a declaration of attempted service at the premises address on four different dates at four different times of the day prior to the Court approving service by posting. In ROA 20, Mr. Voelkl states that on 6/29/2026 at 9:25 PM he posted the signed order to post, summons, complaint, civil case cover sheet, notice that you have been sued at the premises address. Additionally, Shaunt Demirchyan (Los Angeles # 2023065327), a registered process server, mailed the same documents via certified mail to Ms. Marchand at the premises address. California Evidence Code Section 647 creates a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. Ms. Marchand states that she was not personally served and disputes that service was proper without any evidence to rebut the presumption under California Evidence Code Section 647. The Motion to Quash Service of Summons is DENIED. Defendant is ordered to file a responsive pleading within 5 calendar days. Plaintiff is ordered to provide notice of the Court's ruling.
6	30-2026-01562015 Bendy vs. Simpson	The Court has read and considered the Plaintiff's Motion for Summary Judgment (ROA 16), Memorandum of Points and Authorities (ROA 31), Declarations in Support (ROA 25, 27 & 33), Plaintiff's Request for Judicial Notice (ROA 29), Proof of Service (ROA 35), Defendants' Request for Judicial Notice (ROA 41 & 57), Defendant's Ex Parte Application to Stay Proceedings Pending Resolution of Quiet Title Action (ROA 45), Declarations in Support (ROA 39 & 43), Proof of Service (ROA 47), Opposition to Motion for Summary Judgment and Adjudication (ROA 53), Declarations in Support of Opposition (ROA 51, 55, 59 & 63) and Reply to Opposition (ROA 65). The Court GRANTS all requests for Judicial Notice.

Notice of Related Cases & Request for Stay of Unlawful Detainer

Proceedings:

California Rules of Court, Rule 3.300 requires that either party in a civil action file and serve a Notice of Related Cases as soon as the party becomes aware of the related action. This Unlawful Detainer action, 30-2026-01562015-CL-UD-CJC, was filed in the Orange County Superior Court on April 14, 2026. The Civil Unlimited filing regarding Quiet Title filed by Mr. Simpson, 30-2026-01572068-CU-OR-WJC, was filed with the Orange County Superior Court on May 15, 2026, which is the same day that Mr. Simpson filed his Answer to Complaint (ROA 13) in the Unlawful Detainer matter. Mr. Simpson was represented by counsel during the filing of his Answer to the Complaint, and the Answer makes reference to a pending processing and case assignment filing that occurred on May 15, 2026. Exhibit A in the Request for Judicial Notice from Defendant shows that in the Unlimited proceeding, the Defendant in this action filed a Notice of Related Cases in that proceeding on May 15, 2026. Defendant did not file a Notice of Related Case until July 23, 2026, in this Unlawful Detainer proceeding (ROA 49). Defendant's counsel was in the best position on May 15, 2026, to file a Notice of Related Cases with this Court.

The registered action, which was printed on 7/22/2026 (Exhibit A), also shows that there is currently no Motion to Consolidate the cases filed in the Unlimited Civil Action. As this Court is a Court of limited jurisdiction, the proper filing for a Motion to Consolidate the related issues is to file the Motion with the Unlimited Civil Case, which, if the Court determines the matters should be consolidated, could assume the unlawful detainer proceeding, whereas this Court of limited jurisdiction has no authority to consolidate the unlimited civil matter into the limited civil matter.

On July 22, 2026, at 11:05 AM, Defendant e-filed with this Court a Notice of Ex Parte Application and Ex Parte Application to Stay Proceedings Pending Resolution of Quiet Title Action (ROA 37 & 45); this Application was not properly filed as an Ex Parte matter and was not calendared on this Court's ex parte hearings. Although not properly calendared with this Court, the Court will address the merits of the filing.

The entirety of the Defendant's defense to the unlawful detainer action is that the Trustee's Deed Upon Sale is void or voidable as a result of alleged procedural irregularities and lack of proper service under the applicable requirements to provide notice before proceeding with the sale and duly perfecting title. The Defendant does not dispute that the Defendant was properly served with the 3-day notice for the unlawful detainer proceedings on April 7, 2026. Therefore, the sole issue before this Court is whether or not the Plaintiff properly and duly perfected title under Civil Code section 2924f, or whether there was, as alleged by the Defendant, fraud in this matter. The California Court of Appeal in *Martin-Bragg v. Moore* (2013) 219 Cal.App.4th 367 reviewed the decisions in *Berry v. Society of Saint Pius X* (1999) 69 Cal.App.4th 354, *Mehr v. Superior Court* (1983) 139 Cal.App.3d 1044, and *Asuncion v. Superior Court* (1980) 108 Cal.App.3d 141 and held "Each of these cases reflect the courts' recognition that HN5 when complex issues of title are involved, the parties' constitutional rights to due process in the litigation of those issues cannot be subordinated to the summary

		procedures of unlawful detainer. (<i>Lindsey v. Normet, supra</i>, 405 U.S. at pp. 64–66 [summary unlawful detainer procedures are constitutionally acceptable when they are applied to straightforward issues of possession and incidental damages]. By failing to determine whether and how Moore's rights and needs might be balanced with Martin-Bragg's legitimate interests in the matter's prompt resolution, and instead proceeding to try the complex issue of the parties' rights to title of the property within the confines of the summary procedures that apply only to straightforward determination rights to possession, the court abused its discretion.” (<i>Martin-Bragg v. Moore</i> (2013) 219 Cal.App.4th 367, 389-391.) As the sole issue of dispute in this unlawful detainer proceeding is the complicated issue of title, whether the sale of the property at foreclosure was duly perfected, which is at issue in the unlimited court proceeding, the Court will temporarily stay the unlawful detainer proceedings. The Court will set a hearing for a status on the unlimited case on August 28, 2026, at 8:30 AM
7	30-2026-01574512 Camden Jamboree Development, L.P. vs. Barcag	The Court has read and considered Sinan Barcag’s Ex Parte to Set Aside Default Judgment and Stay of Execution of Judgment (ROA 20), Plaintiff’s Opposition (ROA 31), and 7/17/2026 Minute Order (ROA 25). The Court takes Judicial Notice of the 26V001083, Proof of Service of Summons (ROA 8), Proof of Service of Summons & Complaint – Unnamed Occupants (ROA 10) and the Complaint (ROA 2). According to the Domestic Violence Restraining Order 26V001083, the Defendant and named Tenant on the lease, Sinan Barcag, is the husband and father of Sinan Barcag’s three children. The signed rental agreement shows occupancy starting on 9/25/2025. Sinan’s statement in her moving papers is that for two months prior to the granting of the current restraining order signed by Judge Tiffancy Poncy on 7/10/2026, she was required to be out of the home per court order. Two months prior to 7/10/2026 would be on or about 5/10/2026. The Notice to Pay Rent or Quit was served on 5/19/2026 via posting; the Proof of Service of Summons & Complaint – Unnamed Occupants (ROA 10) shows that this was served via substitute service on June 5, 2026, posted on the property, and mailed the same date. California Code of Civil Procedure 415.46(c)(1) states “When serving the summons and complaint upon a tenant and subtenant, if any, the marshal, sheriff, or registered process server shall make a reasonably diligent effort to ascertain whether there are other adult occupants of the premises who are not named in the summons and complaint by inquiring of the person or persons who are being personally served, or any person of suitable age and discretion who appears to reside upon the premises, whether there are other occupants of the premises.” No statement is made by the registered process server that this mandatory inquiry was made. The Court finds that given the totality of the circumstances, including the fact that Sinan Barcag has been found by a judicial officer on a permanent restraining order to be a victim of domestic violence with the Defendant, her husband as the perpetrator, and her three children listed as protected people on that restraining order, that at all times of possible notice or service Sinan

		was prevented by a court order from being at the property which service was effectuated that it would be an extreme hardship for Sinan Barcag and her children to immediately vacate the premises under California Civil Code of Procedure section 918. The Court orders the Writ of Possession STAYED until 11:59 PM on August 11, 2026. The Court Clerk is to notify the Orange County Sheriff's Department that the Writ of Possession is STAYED until 11:59 PM on August 11, 2026. The Orange County Sheriff's Department, on August 12, 2026, may proceed with the lockout of any and all occupants of the premises. The Court Clerk is to provide notice of the Court's ruling.